COMMITTED USE AGREEMENT — MESSAGING & VOICE API

SMS, MMS & Voice API Services

Agreement Date:	January 01, 2025
Contract ID:	TWLO-2025-00201
Vendor:	Twilio Inc. | 375 Beale Street, Suite 300, San Francisco, CA 94105
Customer:	Acme Corporation | 1600 Technology Drive, Halifax, NS B3J 1N9
Effective Date:	January 01, 2025
Renewal Date:	December 31, 2025
Contract Term:	12 months (January 1, 2025 – December 31, 2025)
Auto-Renewal:	No – manual renewal required
Notice Period:	30 days written notice required
Contract Value:	$3,400.00 USD / year
Pricing Escalation:	Usage-based; $3,400 committed spend for volume discount

1. Scope of Services

Twilio Inc. ("Vendor") agrees to provide Acme Corporation ("Customer") with access to the following services and licensed products for the Engineering department under this Agreement:

- $3,400 annual committed spend commitment
- SMS outbound: $0.0075/message (US) at committed tier
- Voice outbound: $0.013/minute at committed tier
- 10DLC campaign registration included
- Dedicated support channel via Slack Connect

2. Fees & Payment Terms

The total annual contract value is $3,400.00 USD, invoiced annually in advance on the Effective Date of each contract year. Payment is due within 30 days of invoice date. Late payments accrue interest at 1.5% per month. All fees are exclusive of applicable taxes.

Pricing escalation terms: Usage-based; $3,400 committed spend for volume discount.

3. Renewal & Cancellation

This Agreement does NOT auto-renew. Customer must provide written notice of intent to renew at least 30 days before the Renewal Date (December 31, 2025) to receive pricing continuity. Renewal is subject to Vendor availability and mutual agreement on pricing. If no renewal notice is received, this Agreement will expire at the end of the current term.

4. Service Level Agreement (SLA)

- 99.95% API uptime
- 24/7 developer support
- P1: 30-min response time
- Status page at status.twilio.com

5. Data Security & Privacy

Vendor will maintain SOC 2 Type II and ISO 27001 certifications throughout the term. Customer data is encrypted in transit (TLS 1.2+) and at rest (AES-256). Vendor will notify Customer within 72 hours of any confirmed data breach affecting Customer data. Data handling complies with applicable Canadian privacy legislation (PIPEDA / provincial equivalents).

6. Key Terms & Conditions

- Intellectual Property: All Vendor software, documentation, and derivatives remain the exclusive property of Vendor.
- Confidentiality: Both parties agree to maintain strict confidentiality of proprietary business information for 3 years beyond termination.
- Limitation of Liability: Vendor's aggregate liability shall not exceed the total fees paid in the 12 months preceding the claim.
- Governing Law: This Agreement is governed by the laws of the State of Delaware, USA.
- Dispute Resolution: Disputes shall first be escalated to executive sponsors; unresolved disputes proceed to binding arbitration.
- Force Majeure: Neither party is liable for delays caused by events beyond reasonable control.
- Assignment: Customer may not assign this Agreement without prior written consent of Vendor.

7. Signatures

By signing below, both parties agree to be bound by the terms and conditions of this Committed Use Agreement — Messaging & Voice API as of the Effective Date stated above.

FOR TWILIO INC.

David Okafor
Senior Account Executive
Twilio Inc.
January 01, 2025

FOR ACME CORPORATION

Marcus Reid
Chief Financial Officer
Acme Corporation
January 01, 2025